

		circumstances surrounding the claim.' " (SAC, ¶¶ 26-28, 30.) Here, based on the allegations in the SAC, and assuming their truth, conduct by Helguera constituting gender discrimination, harassment, and retaliation against Plaintiff occurred culminated on June 30, 2020, Plaintiff's last day of employment. Plaintiff's complaint filed on October 3, 2023 with the DFEH for discrimination based on gender harassment would not have been timely filed within three years from the date upon which the unlawful practice occurred, i.e., end of Plaintiff's employment on June 30, 2020. The SAC does not allege facts supporting a continuing violation of discriminatory conduct based on gender or retaliation that is sufficiently similar in kind and that occurred with sufficient frequency within three years prior to October 3, 2023, nor does it appear that Plaintiff could do so as her last day of employment was June 30, 2020. The demurrer based on the failure to exhaust administrative remedies is SUSTAINED, without leave to amend. In light of the Court's ruling, the Court need not address Defendants' argument that the first cause of action fails to state facts sufficient to state a claim. <u>Motion to Strike Portions of Second Amended Complaint</u> Defendants move for an order striking claims for "substantial losses in past and future wages," "bonuses," and "employment benefits." (SAC ¶¶ 42, 55.) Contrary to what is stated in the notice of motion, Defendants do not move to strike punitive damages allegations, or other allegations beyond the scope of Plaintiffs' FEHA Complaint. In light of the Court's ruling on the demurrer as to the failure to exhaust administrative remedies, the motion to strike is MOOT. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>Defendants to give notice.</i>
106	Potter vs. Brookdale Irvine, 22-01278030	Defendant, Brookdale Senior Living, Inc., moves for summary judgment, or in the alternative, summary adjudication of the four causes of action asserted in the operative Second Amended Complaint of Plaintiffs, Betty Gregory, in and through her Successor-In-Interest, Kimberly Potter and Kimberly Potter.

	"Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc., § 437c(a)(2).) On February 26, 2026, the Court granted Plaintiffs' counsel's motions to be relieved as counsel of record for Kimberly Potter, indicating that the "withdrawal is only effective upon the filing of a proof of service of this [signed] order on Plaintiff." (ROA 413.) The Court's file reflects that proof of service of the order granting the motion to be relieved as counsel of record was filed on April 6, 2026. (ROA 463, 465.) After the Court granted Plaintiff's counsel motion to be relieved as counsel on February 2026, but before proof of service of the order granting the motion to be relieved as counsel of record was filed on April 6, 2026, Defendant, Brookdale Living filed and served the instant motion for summary judgment, or in the alternative, summary adjudication on March 25, 2026. The proofs of service attached to the moving papers indicate that the moving papers were served on Kimberly Potter on March 25, 2026, by electronic service only. California Rules of Court, rule 2.253(b)(2) provides that "[s]elf-represented parties or other self-represented persons are exempt from any mandatory electronic filing and service requirements adopted by courts under this rule and Code of Civil Procedure section 1010.6." Additionally, "[i]n civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise." (California Rules of Court, rule 2.253(b)(3).) "An unrepresented party may consent to receive electronic service." (Code Civ. Proc. §1010.6(c)(2).)
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		Express consent to electronic service may be given by either (1) serving a notice on all parties and filing the notice with the court, or (2) "[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent." (Code Civ. Proc. §1010.6(c)(3)(i)-(ii).) California Rules of Court, rule 2.251(b) sets forth similar ways in which a party may agree to accept electronic service. Kimberly Potter is self-represented. It does not appear that Kimberly Potter has affirmatively agreed to accept service by electronic means. Nor has Kimberly Potter filed an opposition to the instant motion for summary judgment and/or summary adjudication. Under these circumstances, it does not appear that Defendant Brookdale Senior Living, Inc. properly served the moving papers on Kimberly Potter. Consequently, Brookdale Senior Living Inc.'s motion for summary judgment and/or summary adjudication is DENIED, without prejudice. <i>The Court orders clerk to give notice.</i>
107	Ariaga vs. City of Brea, 24-01403550	Defendant, City of Brea ("Brea"), moves for an order granting summary judgment in favor of Brea as to the Complaint of Plaintiff, Melva Ariaga ("Plaintiff"). This motion for summary judgment originally came on for hearing on May 29, 2025, and was continued for proper submission of evidence by Plaintiff. Plaintiff has since lodged the video referenced in the Declaration of Art Ariaga. Brea contends that it is entitled to summary judgment on two separate grounds, each of which is independently sufficient to merit summary judgment in favor of Brea. Brea contends that it is entitled to summary judgment on the ground that the defect alleged by Plaintiff was a trivial defect as the uplift in the sidewalk at issue measured less than one inch at all points, and there were no aggravating circumstances. Brea also contends that Plaintiff's claim would still fail as Plaintiff cannot establish that Brea had actual or constructive notice of the alleged defect. Brea additionally asserts that Brea cannot be held liable for Plaintiff's claims for general negligence and willful failure to warn under Civil Code section 846, as a matter of law.